

Badri Singh v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 13 May 2022 · WRIT - C No. - 3872 of 2022 · **Writ disposed on licensee's statement; petitioner to file Para 6.8 objection for speaking order after hearing.**

HEADNOTE

On a writ to quash a recovery citation and for mandamus to make a proper Section 126 / clause 6.8 assessment, the Allahabad High Court disposed of the petition on the distribution licensee's statement that the consumer may file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within three weeks, to be decided by a speaking and reasoned order within four weeks after hearing. The citation was not quashed and the assessment was not decided on merits.

FACTUAL SUMMARY

The petitioner, Badri Singh, approached the High Court at Allahabad against a recovery citation dated 8 November 2021 issued by respondent no. 3. He sought certiorari to quash that citation and a mandamus requiring respondent no. 4, the distribution licensee, to carry out a proper assessment of unauthorized use of electricity under Section 126 of the Electricity Act, 2003 and to proceed under clause 6.8 of the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Para 6.8 objection as alternate remedy to writ against recovery citation

HOLDING

A writ seeking quash of a recovery citation and mandamus for a proper Section 126 / clause 6.8 assessment may be disposed of on the licensee's statement that the consumer may file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within a stipulated time, to be decided by a speaking and reasoned order after reasonable opportunity of hearing, without the Court quashing the citation or deciding the assessment on merits. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ against the 8.11.2021 recovery citation and for a proper s.126 / clause 6.8 assessment was disposed of by relegating the petitioner to file an objection under Para 6.8, to be decided by speaking and reasoned order after hearing. ¶ 1

fresh-objection-under-clause-6.8 Licensee's counsel stated the petitioner may file his objection under Para 6.8 within three weeks; if so filed, respondent no. 4 would decide it by speaking and reasoned order within four weeks after affording reasonable opportunity of hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 8 NOVEMBER 2021

Certiorari to quash Annexure-4 was prayed for; the writ was disposed of on the 6.8-objection statement without examining the citation. ¶ 1

NOT DECIDED — MERITS OF THE SECTION 126 UNAUTHORIZED-USE ASSESSMENT

¶ 1

